

FIRST ENDORSEMENT

Andre Applewhite, Chief Prosecutor, Civilian Complaint Review Board to Deputy Commissioner Paul M. Gamble Sr., Department Advocate's Office, February 29, 2024. Contents noted. Recommend approval of the negotiated plea agreement in DADS No. 2023-28372 against LT Francisco Hernandez Tax Registry 936753. The case was conferenced on February 15, 2024, before Assistant Deputy Commissioner of Trials Jeff Adler who partially approved the negotiated penalty of a dismissal of the charges along with a Schedule B Command Discipline and the forfeiture of TEN (10) vacation days.

ADCT Adler endorsed the CCRB's recommendation of the forfeiture of TEN (10) vacation days for Specification 2 and the CCRB's recommendation that the penalties for both Specifications should run concurrently. ADCT Jeff Adler disagreed with the CCRB's recommendation of the forfeiture of FIVE (5) vacation days for Specification 1 and stated that the penalty for Specification 1 should be the forfeiture of ONE (1) vacation day. CCRB maintains that the recommended penalty should be the dismissal of the charges along with the forfeiture of FIVE (5) vacation days for Specification 1 and the forfeiture of TEN (10) for Specification 2, with these penalties to run concurrently.

Andre D. Applewhite

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Chief Prosecutor

New York City Civilian Complaint Review Board



DISPOSITION OF CHARGES
PD 468-142(Rev. 8-89)-2

CASE NO. 2023-28372
BOOK & PAGE NO. Page 1 of 1
PERSONNEL ORDER NO.

RANK/TITLE LT	SURNAME, HERNANDEZ	FIRST FRANCISCO	M.I. A	COMMAND 041 PRECINCT
SHIELD NO. 00000	TAX REGISTRY NO. 936753	SOCIAL SECURITY NO.	DATE APPOINTED 01/10/2005	
RANK/NAME OF COMPLAINANT				COMMAND
DATE OF CHARGES		DATE TRIAL COMMENCED		DATE TRIAL CONCLUDED

TRIAL COMMISSIONER

SPECIFICATION	DISPOSITION	RECOMMENDED PENALTY PLEA [X] TRIAL []
1. 1. Lieutenant Francisco HERNANDEZ, on or about January 13, 2022, at approximately 2348, while assigned to 041 PCT and on duty, in the vicinity of § 87(2)(b) Bronx County, engaged in conduct prejudicial to the good order, efficiency, or discipline of the New York Police Department in that LT HERNANDEZ spoke discourteously to § 87(2)(b) without sufficient legal authority.	DISMISSED	B - COMMAND DISCIPLINE 1.00 - It is recommended that the Charges and Specifications be dismissed and that the matter be remanded to the Respondents command for imposition of a Schedule B Command Discipline with the forfeiture of the amount of vacation days as indicated. VACATION DAYS 10.00 - It is recommended that the Respondent forfeit the amount of vacation days as indicated.
2. Lieutenant Francisco HERNANDEZ, on or about August 16, 2022, at approximately 2348, while assigned to 041 PCT, at 100 Church Street, NY County, provided an inaccurate statement to CCRB in that LT Hernandez was unable to recognize or recall if the voice calling § 87(2)(b) was his voice.	DISMISSED	

DC Broderick
FIRST DEPUTY COMMISSIONER

4/15/24
DATE

POLICE COMMISSIONER'S APPROVAL

- ☒ Approved
☐ Disapproved
☐ Other Action (Describe)

Edward A. Cab...
POLICE COMMISSIONER

5/21/24
DATE

THIRD ENDORSEMENT

First Deputy Commissioner to Police Commissioner, April 12, 2024. Contents noted. I reviewed the negotiated plea in Disciplinary Case No. 202200784 against Lieutenant Francisco Hernandez, Tax #936753, with the recommendation that the Charges and Specifications against Lieutenant Hernandez be dismissed and that Lieutenant Hernandez receive a Schedule "B" Command Discipline and forfeit ten (10) vacation days. Assistant Deputy Commissioner, Trials Jeff S. Adler reviewed this case and made a favorable recommendation pertaining to the proposed settlement; I concur. **RECOMMEND APPROVAL.**

DC Kinsella

Tania I. Kinsella

FIRST DEPUTY COMMISSIONER

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TIK/pk



APPROVED

MAY 21 2024

Edward A. Caban
EDWARD A. CABAN
POLICE COMMISSIONER

